

2015 WL 5927800 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Michael SIMMONS, Robert McDuffie, Tiffany Cooper, and Miriam Jimenez, Plaintiffs,

v.

THE CITY OF NEW YORK, the New York City Police Department, P.O. Hector Alvarez, Shield No. 13331, Sgt, Joseph Garcia, P.O. "John Doe # 1" first and last names being fictitious and unknown and intended to be the partner of P.O. Hector Alvarez, P.O. "John Doe #2", P.O. "John Doe # 3", P.O. "John Doe # 4", P.O. "John Doe #5", P.O. "John Doe #6", P.O. "John Doe # 7" and P.O. "John Doe # 8", first and Last names being fictitious and unknown and intended to designate the members of the New York City Police Department who falsely arrested, falsely imprisoned and maliciously prosecuted the Plaintiffs, Defendants.

No. 0025408-2015.
October 1, 2015.

Summons

[John E. Tolud](#), The Perecman Firm, PLLC, 250 West 57th Street, Suite 401, New York, New York 10107, (212) 977-7033, for plaintiffs.

To the Above Named Defendant:

You are hereby Summoned, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York September 29, 2015

Plaintiffs, by their attorneys, The Perecman Firm, PLLC, complaining of the Defendants herein, respectfully shows to this Court, and alleges as follows:

PARTIES

1. That at all times hereinafter mentioned, Plaintiff MICHAEL SIMMONS was and still is a resident of the State of New York, residing in Bronx County.
2. That at all times hereinafter mentioned, Plaintiff ROBERT McDUFFIE was and still is a resident of the State of New York, residing in Bronx County.
3. That at all times hereinafter mentioned, Plaintiff MIRIAM JIMENEZ was and still is a resident of the State of New York, residing in Bronx County.
4. That at all times hereinafter mentioned, Plaintiff TIFFANY COOPER was and still is a resident of the State of New York, residing in Bronx County.

5. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

6. That at all times hereinafter mentioned, and upon information and belief, Defendant, P.O. HECTOR ALVAREZ, Shield No. 13331, hereinafter referred to as (“P.O. ALVAREZ”) was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

7. That at all times hereinafter mentioned, and upon information and belief, Defendant, SGT JOSEPH GARCIA hereinafter referred to as (“SGT. GARCIA”) was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

8. That at all times hereinafter mentioned, and upon information and belief, Defendant, P.O. “JOHN DOE # 1” first and last names being fictitious and unknown and intended to be the partner of P.O. Hector Alvarez, was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

9. That at all times hereinafter mentioned, and upon information and belief Defendant, P.O. “JOHN DOE # 2” was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

10. That at all times hereinafter mentioned, and upon information and belief Defendant, P.O. “JOHN DOE # 3” was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

11. That at all times hereinafter mentioned, and upon information and belief Defendant, P.O. “JOHN DOE # 4” was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

12. That at all times hereinafter mentioned, and upon information and belief Defendant, P.O. “JOHN DOE # 5” was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

13. That at all times hereinafter mentioned, and upon information and belief Defendant, P.O. “JOHN DOE # 6” was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

14. That at all times hereinafter mentioned, and upon information and belief Defendant, P.O. “JOHN DOE # 7” was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

15. That at all times hereinafter mentioned, and upon information and belief Defendant, P.O. “JOHN DOE # 8” was and is a police **officers** of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

BACKGROUND

16. On October 15, 2014, at about 5:30 P.M. at 2645 Third Avenue, 5th Floor, in the City and State of New York, County of Bronx, P.O. ALVAREZ, and P.O. “JOHN DOE # 1” acting as agents, servants and/or employees of the Defendants, approached

Plaintiffs MICHAEL SIMMONS and ROBERT McDUFFIE who were standing in the hallway outside of the apartment of plaintiff MIRIAM JIMENEZ (Apt. 5C) and began to be questioned, interrogated, detained plaintiffs.

17. Plaintiff MICHAEL SIMMONS informed the **officers** that he was visiting his girlfriend, plaintiff MIRIAM JIMENEZ in apartment 5C.

18. **Officers** handcuffed plaintiff MICHAEL SIMMONS, searched his pockets, allowed him to call for plaintiff MIRIAM JIMENEZ in Apartment 5C, the **officers** verified the information and let plaintiff go back to Apartment 5C.

19. Thereafter plaintiff MIRIAM JIMENEZ was standing inside the door of apartment 5C, recording the activities in the hallway on a cellular device when a P.O. JOHN DOE # “2” told her to come out into the hallway or he would come in to get her,

20. P.O. “JOHN DOE # 2”, went into the apartment and began to pull plaintiff MIRIAM JIMENEZ. Plaintiff MIRIAM JIMENEZ refused to come out of her apartment and braced herself against the door frame, and other Police **Officers** began pulling her out and roughing her up and pushing her against the wall with their bodies.

21. Immediately thereafter Sgt. Garcia and other Police **Officers** went into the apartment and dragged Plaintiffs MICHAEL SIMMONS and ROBERT McDUFFIE out of apartment 5C and P.O. “JOHN DOE # 2” P.O. “JOHN DOE # 3”, P.O. “JOHN DOE # 4”, P.O. “JOHN DOE # 5, P.O. “JOHN DOE # 6”, P.O. “JOHN DOE # 7” began striking plaintiffs MICHAEL SIMMONS and ROBERT McDUFFIE about their bodies multiple times.

22. P.O. “JOHN DOE” # 8” took plaintiff TIFFANY COOPER out of her apartment and slammed her viciously against the hallway window causing her to sustain injuries.

23. After punching and violently striking plaintiffs MICHAEL SIMMONS, and ROBERT McDUFFIE defendants intentionally placed plaintiff MICHAEL SIMMONS AND ROBERT McDUFFIE under arrest without just cause or provocation and with reckless and negligent disregard for the truth. Defendants' continued to assault both plaintiffs MICHAEL SIMMONS and ROBERT McDUFFIE, causing plaintiffs to lose conscience.

24. On or about October 15, 2014, both plaintiffs, MICHAEL SIMMONS and ROBERT McDUFFIE were processed at Central Booking, and without being charged for committing a crime and without seeing a judge they were released,

25. As a result of the treatment of plaintiffs by defendants, plaintiffs, MICHAEL SIMMONS, ROBERT McDUFFIE were denied liberty by being falsely arrested and imprisoned.

26. Plaintiffs MICHAEL SIMMONS, ROBERT McDUFFIE, MIRIAM JIMENEZ and TIFFANY COOPER sustained injuries to their head, neck, back, shoulders and legs.

27. Defendants caused plaintiffs MICHAEL SIMMONS, ROBERT McDUFFIE, TIFFANY COOPER, and MIRIAM JIMENEZ, to be humiliated, to fear for their safety, and to suffer from other emotional distress.

PROCEDURAL POSTURE

28. On November 10, 2014, and within ninety (90) days after the claim of false imprisonment arose, Plaintiff MICHAEL SIMMONS, served a Notice of Claim in writing sworn to on their behalf upon defendant CITY, by delivering a copy thereof in duplicate to the **Officer** designated to receive such process personally, which Notice of Claim advised the Defendant CITY, or the nature place, time and manner in which the claim arose, the items of damages and injuries sustained so far as was then determinable.

29. On November 10, 2014, and within ninety (90) days after the claim of false imprisonment arose, Plaintiff ROBERT McDUFFIE, served a Notice of Claim in writing sworn to on their behalf upon defendant CITY, by delivering a copy thereof in duplicate to the **Officer** designated to receive such process personally, which Notice of Claim advised the Defendant CITY, or the nature place, time and manner in which the claim arose, the items of damages and injuries sustained so far as was then determinable.

30. On November 10, 2014, and within ninety (90) days after the claim of false imprisonment arose, Plaintiff MIRIAM JIMENEZ, served a Notice of Claim in writing sworn to on their behalf upon defendant CITY, by delivering a copy thereof in duplicate to the **Officer** designated to receive such process personally, which Notice of Claim advised the Defendant CITY, or the nature place, time and manner in which the claim arose, the items of damages and injuries sustained so far as was then determinable.

31. On November 10, 2014, and within ninety (90) days after the claim of false imprisonment arose, Plaintiff TIFFANY COOPER, served a Notice of Claim in writing sworn to on their behalf upon defendant CITY, by delivering a copy thereof in duplicate to the **Officer** designated to receive such process personally, which Notice of Claim advised the Defendant CITY, or the nature place, time and manner in which the claim arose, the items of damages and injuries sustained so far as was then determinable.

32. At least thirty (30) days have elapsed since the service of the claim prior to commencement of this action and adjustment of payment thereof has been neglected or refused.

33. A 50-H hearing has been held.

34. This action was commenced within one year and ninety days after the causes of action accrued.

35. Plaintiff has duly complied with all conditions precedent to the commencement of this action,

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT AND FALSE ARREST

36. Paragraphs 1-35 are incorporated by reference as fully set forth herein.

37. The Defendants, including P.O. ALVAREZ, SGT GARCIA P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8", their agents servants and employees, arrested and confined Plaintiff MICHAEL SIMMONS as described in paragraphs 9-19, and intended to confine plaintiffs. Plaintiff were conscious of their confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal rights.

38. The Defendants, including P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8", their agents servants and employees, arrested and confined Plaintiff ROBERT McDUFFIE as described in paragraphs 9-19, and intended to confine plaintiff. Plaintiff was conscious of their confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal rights.

39. As a result of being falsely arrested and imprisoned by the defendants, plaintiffs sustained multiple injuries. Plaintiff was denied liberty and the ability to enjoy life while they were imprisoned. Plaintiff MICHAEL SIMMONS also suffered emotional distress, humiliation and fear and intimidation for his safety.

40. As a result of being falsely arrested and imprisoned by the defendants, plaintiffs sustained multiple injuries. Plaintiff was denied liberty and the ability to enjoy life while they were imprisoned. Plaintiff ROBERT McDUFFIE also suffered emotional distress, humiliation and fear and intimidation for their safety.

SECOND CAUSE OF ACTION: ABUSE OF PROCESS

41. Paragraphs 1-40 are incorporated by reference as though fully set forth herein.

42. In arresting Plaintiff MICHAEL SIMMONS, P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE #1" and P.O. "JOHN DOE #2", P.O. "JOHN DOE #3", P.O. "JOHN DOE #4", P.O. "JOHN DOE #5", P.O. "JOHN DOE #6", P.O. "JOHN DOE #7", and P.O. "JOHN DOE #8", acting in their capacity as agents, servants and employees of the Defendants, and were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

43. In arresting Plaintiff ROBERT McDUFFIE, P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE #1" and P.O. "JOHN DOE #2", P.O. "JOHN DOE #3", P.O. "JOHN DOE #4", P.O. "JOHN DOE #5", P.O. "JOHN DOE #6", P.O. "JOHN DOE #7", and P.O. "JOHN DOE #8", acting in their capacity as agents, servants and employees of the Defendants, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

44. In arresting Plaintiff MICHAEL SIMMONS, P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE #1" and P.O. "JOHN DOE #2", P.O. "JOHN DOE #3", P.O. "JOHN DOE #4", P.O. "JOHN DOE #5", P.O. "JOHN DOE #6", P.O. "JOHN DOE #7" and P.O. "JOHN DOE #8", sought either a detriment to plaintiffs or a collateral advantage to the defendants that is outside of the legitimate ends of making an arrest.

45. In arresting Plaintiff ROBERT McDUFFIE, P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE #1" and P.O. "JOHN DOE #2", P.O. "JOHN DOE #3", P.O. "JOHN DOE #4", P.O. "JOHN DOE #5", P.O. "JOHN DOE #6", P.O. "JOHN DOE #7", and P.O. "JOHN DOE #8", sought either a detriment to plaintiff or a collateral advantage to the defendants that is outside of the legitimate ends of making an arrest.

46. As a result of the abuse of process by the defendants, Plaintiff MICHAEL SIMMONS sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

47. As a result of the abuse of process by the defendants, Plaintiff ROBERT McDUFFIE, sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ASSAULT

48. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.

49. P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE #1" and P.O. "JOHN DOE #2", P.O. "JOHN DOE #3", P.O. "JOHN DOE #4", P.O. "JOHN DOE #5", P.O. "JOHN DOE #6", P.O. "JOHN DOE #7", and P.O. "JOHN DOE #8" acting as the agents, servants and employees of the Defendants, placed plaintiff MICHAEL SIMMONS, in apprehension of imminent harmful or offensive contact. The defendants punched plaintiffs' face, head, back, shoulders, legs.

50. P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE #1" and P.O. "JOHN DOE #2", P.O. "JOHN DOE #3", P.O. "JOHN DOE #4", P.O. "JOHN DOE #5", P.O. "JOHN DOE #6", P.O. "JOHN DOE #7", and P.O. "JOHN DOE #8", acting as the agents, servants and employees of the Defendants, placed plaintiff, ROBERT McDUFFIE, in apprehension of imminent harmful or offensive contact. The defendants punched plaintiff's face, head, back, shoulders, legs.

51. P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7, and P.O. "JOHN DOE # 8", acting as the agents, servants and employees of the Defendants, placed plaintiff, MIRIAM JIMENEZ in apprehension of imminent harmful or offensive contact. The defendants forcibly grabbed plaintiff MIRIAM JIMENEZ by the arm and forcibly held against the wall.

52. P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7, and P.O. "JOHN DOE # 8, acting as the agents, servants and employees of the Defendants, placed plaintiff TIFFANY COOPER in apprehension of imminent harmful or offensive contact. The defendants forcibly grabbed plaintiff MIRIAM JIMENEZ by the arm and forcibly held against a window.

53. As a result of being assaulted by P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7, and P.O. "JOHN DOE # 8, plaintiff MICHAEL SIMMONS sustained multiple injuries, including injuries to his head, neck, face, back shoulders, legs. Plaintiff also sustained emotional distress, humiliation and fear and intimidation for his safety.

54. As a result of being assaulted by P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8", plaintiff ROBERT McDUFFIE, sustained multiple injuries, including injuries to his head, neck, face, back shoulders, legs. Plaintiff also sustained emotional distress, humiliation and fear and intimidation for his safety.

55. As a result of being assaulted by P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1 and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8", plaintiff MIRIAM JIMENEZ sustained multiple injuries, including injuries to her body. Plaintiff also sustained emotional distress, humiliation and fear and intimidation for her safety.

56. As a result of being assaulted by P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5", P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8", plaintiff TIFFANY COOPER sustained multiple injuries, including injuries to her body. Plaintiff also sustained emotional distress, humiliation and fear and intimidation for her safety.

FOURTH CAUSE OF ACTION: BATTERY

57. Paragraphs 1-56 are incorporated by reference as though fully set forth herein.

58. When the defendants, including P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8", grabbed plaintiff MICHAEL SIMMONS slammed plaintiff to the ground and repeatedly striking plaintiff, they subjected plaintiff to a harmful or offensive bodily contact. The defendants intended to make that contact without the consent of plaintiff.

59. When the defendants, including P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8", grabbed plaintiff, ROBERT McDUFFIE, slammed plaintiffs to the ground and repeatedly striking plaintiff, they subjected plaintiff to a harmful or offensive bodily contact. The defendants intended to make that contact without the consent of plaintiff.

60. When the defendants, including P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O.

“JOHN DOE # 8”, grabbed plaintiff, MIRIAM JIMENEZ, slammed plaintiff her by her arm against the wall they subjected plaintiff to a harmful or offensive bodily contact. The defendants intended to make that contact without the consent of plaintiff.

61. When the defendants, including P.O. ALVAREZ, SGT GARCIA, P.O. “JOHN DOE # 1” and P.O. “JOHN DOE # 2”, P.O. “JOHN DOE # 3”, P.O. “JOHN DOE # 4”, P.O. “JOHN DOE # 5, P.O. “JOHN DOE # 6”, P.O. “JOHN DOE # 7”, and P.O. “JOHN DOE # 8”, grabbed plaintiff TIFFANY COOPER, slammed plaintiff by her arm against the window, they subjected plaintiff to a harmful or offensive bodily contact. The defendants intended to make that contact without the consent of plaintiff.

62. As a result of being battered by P.O. ALVAREZ, SGT GARCIA, P.O. “JOHN DOE # 1” and P.O. “JOHN DOE # 2”, P.O. “JOHN DOE # 3”, P.O. “JOHN DOE # 4”, P.O. “JOHN DOE # 5, P.O. “JOHN DOE # 6”, P.O. “JOHN DOE # 7, and P.O. “JOHN DOE # 8”, plaintiffs sustained multiple injuries, including emotional distress, humiliation and fear and intimidation for their safety. Plaintiffs also sustained injuries to their head, neck, back, shoulders, legs.

FIFTH CAUSE OF ACTION: NEGLIGENCE

63. Paragraphs 1-62 are incorporated by reference as though fully set forth herein.

64. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, assault and battery, were caused solely by the negligence of the defendants, their agents, servants and/or employees.

65. As a result of the negligence of the defendants Plaintiffs sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for their safety.

SIXTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

66. Paragraphs 1-65 are incorporated by reference as though fully set forth herein.

67. Defendant CITY, through its agents, servants, and employees, including POLICE, had the responsibility for supervision, disciplining, evaluating and training of the NYPD **officers** involved in this matter, including P.O. ALVAREZ, SGT GARCIA, P.O. “JOHN DOE # 1” and P.O. “JOHN DOE # 2”, P.O. “JOHN DOE # 3”, P.O. “JOHN DOE # 4”, P.O. “JOHN DOE # 5, P.O. “JOHN DOE # 6”, P.O. “JOHN DOE # 7”, and P.O. “JOHN DOE # 8”.

68. Defendant CITY, and POLICE have grossly failed to train and properly supervise its police **officers**, particularly the police **officers** involved herein, regarding the law of arrest, search and seizure.

70. Defendant CITY and POLICE were negligent by failing to implement a policy within its police department instructing police **officers** not to arrest individuals such as the Plaintiffs unless there is a court authorized warrant or sufficient cause.

71. The foregoing acts, omissions and systematic failures are customs and policies of the Defendant, which caused its police **officers** to illegally search and seize, falsely arrest plaintiffs.

72. As a result of the negligence of the defendants, Plaintiffs sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for their safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING

73. Paragraphs 1-72 are incorporated by reference as though fully set forth herein.

74. The defendants had the responsibility for hiring the police **officers** that arrested plaintiffs, including P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2" P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8".

75. The defendants were negligent in hiring the police **officers** that arrested plaintiff, including P.O. ALVAREZ, SGT GARCIA, P.O. "JOHN DOE # 1" and P.O. "JOHN DOE # 2", P.O. "JOHN DOE # 3", P.O. "JOHN DOE # 4", P.O. "JOHN DOE # 5, P.O. "JOHN DOE # 6", P.O. "JOHN DOE # 7", and P.O. "JOHN DOE # 8".

76. As a result of the negligence of defendants, plaintiffs sustained multiple physical and emotional injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for their safety.

WHEREFORE, Plaintiffs MICHAEL SIMMONS, ROBERT McDUFFIE, TIFFANY COOPER, and MIRIAM JIMENEZ demand judgment against the Defendants, on the First Cause of Action through the Seventh Cause of Action, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: New York, New York September 29, 2015

Yours, etc, The Perecman Firm, PLLC

By: JOHN E. TOLUD

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